

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOVON GENERLETTE,

Plaintiff,

INDEX NO.: 150472/2021

-against-

SLATE NY, ALLSTAR SECURITY & CONSULTING, INC.,
NICHOLAS AGLIATO, THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT and POLICE OFFICER
LIAM MCHUGH,

**VERIFIED AMENDED
COMPLAINT**

Defendants.
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Plaintiff, JOVON GENERLETTE, by his attorneys, LEAV & STEINBERG, LLP,
complaining of defendants, respectfully sets forth and alleges the following, upon information
and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. Plaintiff JOVON GENERLETTE, at all times herein mentioned, was and still is a
resident of the County, City and State of New York.

2. Defendant SLATE NY, at all times herein mentioned, was and still is a domestic
business corporation, authorized to and doing business in the State of New York.

3. Defendant SLATE NY, at all times herein mentioned, was and still is a domestic
business corporation, duly organized and existing under and by virtue of the laws of the State of
New York.

4. Defendant SLATE NY, at all times herein mentioned, maintained a principal
place of business situated at 54 West 21st Street, New York, NY 10010.

5. Defendant ALLSTAR SECURITY & CONSULTING, INC., at all times herein
mentioned, was and still is a domestic business corporation, authorized to and doing business in
the State of New York.

6. Defendant ALLSTAR SECURITY & CONSULTING, INC., at all times herein mentioned, was and still is a domestic business corporation, duly organized and existing under and by virtue of the laws of the State of New York.

7. Defendant ALLSTAR SECURITY & CONSULTING, INC., at all times herein mentioned, conducted business at 54 West 21st Street, New York, NY 10010.

8. Defendant ALLSTAR SECURITY & CONSULTING, INC., at all times herein mentioned, was contracted, doing and/or conducting business with defendant SLATE NY.

9. Defendant NICHOLAS AGLIATO, at all times herein mentioned, was and still is an agent, servant and/or employee of defendant SLATE NY.

10. Defendant NICHOLAS AGLIATO, at all times herein mentioned, was and still is an agent, servant and/or employee of defendant ALLSTAR SECURITY & CONSULTING, INC.

11. That on December 20, 2019, defendant SLATE NY was the owner of a certain restaurant/bar establishment known and designated as SLATE NY located at 54 West 21st Street, in the County, City and State of New York.

12. That on December 20, 2019, the aforesaid restaurant/bar establishment was used for commercial purposes.

13. That on December 20, 2019, defendant SLATE NY was one of the owners of the aforesaid restaurant/bar establishment.

14. That on December 20, 2019, defendant SLATE NY was a lessee of the aforesaid restaurant/bar establishment.

15. That on December 20, 2019, defendant SLATE NY was a lessor of the aforesaid restaurant/bar establishment.

16. That on December 20, 2019, defendant SLATE NY, by its agents, servants and/or

employees, operated the aforesaid restaurant/bar establishment.

17. That on December 20, 2019, defendant SLATE NY, by its agents, servants and/or employees, managed the aforesaid restaurant/bar establishment.

18. That on December 20, 2019, defendant SLATE NY, by its agents, servants and/or employees, maintained the aforesaid restaurant/bar establishment.

19. That on December 20, 2019, defendant SLATE NY, by its agents, servants and/or employees, supervised the aforesaid restaurant/bar establishment.

20. That on December 20, 2019, defendant SLATE NY, by its agents, servants and/or employees, controlled the aforesaid restaurant/bar establishment.

21. That on December 20, 2019, defendant SLATE NY, by its agents, servants and/or employees, inspected the aforesaid restaurant/bar establishment.

22. That on December 20, 2019, defendant SLATE NY, its agents, servants and/or employees serviced the aforesaid restaurant/bar establishment.

23. That on December 20, 2019 and prior thereto, defendant SLATE NY, by its agents, servants and/or employees, reserved unto itself the duty to keep and maintain the aforesaid restaurant/bar establishment in a reasonably safe, proper and suitable condition.

24. That on December 20, 2019 and prior thereto, defendant SLATE NY, by its agents, servants and/or employees, was under a duty to operate, control, supervise, manage and maintain the aforesaid restaurant/bar establishment in a safe and proper fashion so that no persons lawfully at said premises would be caused to sustain serious injuries.

25. That on December 20, 2019, and for some time prior thereto, defendant SLATE NY was a restaurant/bar open to the general public.

26. That on December 20, 2019, and for some time prior thereto, defendant SLATE

NY, employed certain personnel, including but not limited to, waiters, waitresses, bartenders, bouncers and security staff at the aforesaid restaurant/bar establishment.

27. That on December 20, 2019, and for some time prior thereto, defendant SLATE NY, retained, contracted, the security services on defendant ALLSTAR SECURITY & CONSULTING, INC.

28. That on December 20, 2019, and for some time prior thereto, defendant ALLSTAR SECURITY & CONSULTING, INC., by its servants, agents, and/or employees provided certain security services at the aforesaid restaurant/bar establishment.

29. That on December 20, 2019, and for some time prior thereto, defendant ALLSTAR SECURITY & CONSULTING, INC., by its servants, agents, and/or employees contracted to provide security and/or patrol services for the aforesaid restaurant/bar establishment.

30. That on December 20, 2019, and for some time prior thereto, defendant ALLSTAR SECURITY & CONSULTING, INC, by its servants, agents, and/or employees were providing certain security, patrol, and/or other security related services at the aforesaid restaurant/bar establishment.

31. That on December 20, 2019, it was the duty of the defendant ALLSTAR SECURITY & CONSULTING, INC, by its servants, agents, and/or employees to maintain the aforesaid restaurant/bar establishment in a reasonably safe and suitable condition.

32. That on December 20, 2019, it was the duty of the defendant ALLSTAR SECURITY & CONSULTING, INC, by its servants, agents, and/or employees to maintain the security service staff such that they would operate in a reasonably safe, lawful, and proper fashion.

33. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, operated security at the aforesaid

restaurant/bar establishment.

34. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, managed security at the aforesaid restaurant/bar establishment.

35. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, maintained security at the aforesaid restaurant/bar establishment.

36. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, supervised security at the aforesaid restaurant/bar establishment.

37. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, controlled security at the aforesaid restaurant/bar establishment.

38. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, inspected security at the aforesaid restaurant/bar establishment.

39. That on December 20, 2019, defendant ALLSTAR SECURITY & CONSULTING, INC, its agents, servants and/or employees serviced security at the aforesaid restaurant/bar establishment.

40. That on December 20, 2019 and prior thereto, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, reserved unto itself the duty to keep and maintain security at the aforesaid restaurant/bar establishment in a reasonably safe, proper and suitable condition.

41. That on December 20, 2019 and prior thereto, defendant ALLSTAR SECURITY & CONSULTING, INC, by its agents, servants and/or employees, was under a duty to operate, control, supervise, manage and maintain security at the aforesaid restaurant/bar establishment in a safe and proper fashion so that no persons lawfully within said premises would be caused to sustain serious injuries.

42. That on December 20, 2019, defendant NICHOLAS AGLIATO was a servant, agent, and/or employee of the defendant SLATE NY.

43. That on December 20, 2019, defendant NICHOLAS AGLIATO was a servant, agent, and/or employee of the defendant ALLSTAR SECURITY & CONSULTING, INC.

44. That on December 20, 2019, defendant NICHOLAS AGLIATO was acting within the scope of his authority and employment as a servant, agent, and/or employee of the defendant SLATE NY.

45. That on December 20, 2019, defendant NICHOLAS AGLIATO was acting within the scope of his authority and employment as a servant, agent, and/or employee of the defendant ALLSTAR SECURITY & CONSULTING, INC.

46. That on December 20, 2019, defendant NICHOLAS AGLIATO was acting to further the business of the defendant SLATE NY.

47. That on December 20, 2019, defendant NICHOLAS AGLIATO was acting to further the business of the defendant ALLSTAR SECURITY & CONSULTING, INC.

48. That on December 20, 2019, the commercial business known as Slate NY was open to the general public.

49. That on December 20, 2019, the plaintiff JOVON GENERLETTE was a patron, lawfully present at the aforesaid restaurant/bar establishment.

50. That on December 20, 2019, the plaintiff JOVON GENERLETTE was violently punched, struck, hit, attached, and otherwise assaulted and battered while at the aforesaid restaurant/bar establishment without warning, fault or provocation.

51. That on December 20, 2019, the plaintiff JOVON GENERLETTE was violently punched, struck, hit, attached, and otherwise assaulted and battered by defendant NICHOLAS AGLIATO, employee of defendants SLATE NY and ALLSTAR SECURITY & CONSULTING, INC, while at the aforesaid restaurant/bar establishment without warning, fault or provocation.

52. That as a result of the foregoing, plaintiff JOVON GENERLETTE sustained serious, severe and grievous personal injuries, severe pain and suffering, emotional distress and mental anguish, as a result of the defendants' negligence, carelessness and reckless in causing this incident.

53. Defendants SLATE NY, ALLSTAR SECURITY & CONSULTING, INC and NICHOLAS AGLIATO, by and through their agents, servants and/or employees were negligent in the ownership, operation, control, care, custody, charge, management, maintenance and supervision of the aforesaid restaurant/bar establishment; in causing, permitting and/or allowing plaintiff to be struck by defendants' employees; in failing to provide a safe place for plaintiff; in failing to prevent plaintiff's injuries; in failing to warn the plaintiff of the dangers existing thereat; in failing to have proper and adequate supervision thereat; in failing to prevent this unprovoked and unwarranted physical assault upon the plaintiff herein; in failing to properly, thoroughly and adequately train their agents, servants and/or employees in the safe and proper execution of their job duties and responsibilities at the aforesaid restaurant/bar establishment; in failing to properly, timely and adequately supervise the activities, actions and behavior of its employees at the aforesaid restaurant/bar establishment; in causing, permitting and/or allowing

employees with violent natures, tendencies, propensities and personalities to be, become and remain in their employ; in failing to timely and properly remove and/or discharge said employees; in negligently hiring and/or retaining in their employ people with vicious nature and propensities; in causing, permitting and/or allowing persons with unstable personalities and vicious and violent tendencies, to be, become and remain in their employ and at their aforesaid restaurant/bar establishment; in failing to properly, thoroughly and/or adequately train those individuals hired as employees in the safe and proper execution of their job; in failing to provide continuing and on-going training for its employees with respect to the proper discharge of their duties; in allowing all of the foregoing to exist with actual and constructive notice; in failing to warn and/or advise plaintiff of the dangers existing thereat; in placing plaintiff in a position of harm and danger; in exposing the plaintiff to a threat of bodily injury, danger and harm; in placing plaintiff in a position of peril, bodily harm and danger; in failing to provide plaintiff with safe haven while he was in their care, custody and charge; in failing to warn plaintiff of the dangers existing thereat; in failing to prevent this assault from occurring; in failing to supervise, properly supervise and adequately supervise their employees; in violating the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided; and defendants were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence in the premises.

54. That the aforesaid occurrence was caused solely by reason of the negligence of the defendants, their agents, servants and/or employees and without any negligence on the part of plaintiff JOVON GENERLETTE contributing thereto.

55. That as a result of the aforesaid occurrence, plaintiff JOVON GENERLETTE sustained severe and permanent personal injuries to his head, limbs, body and nervous system

and has been rendered sick, sore, lame and disabled and upon information and belief, some of these injuries are permanent; that he has been unable to pursue his usual vocational and recreational activities for some time; that he has been confined to bed and home for some time; that he has been compelled to submit himself to hospital and medical care and attention and to incur various sums of money therefore in an endeavor to cure or alleviate his said injuries and that he has been compelled to suffer physical pain, mental anguish and emotional distress.

56. The causes of action asserted herein are not subject to the provision of Article 16 of the CPLR and/or come within the stated exceptions found in CPLR §1602.

57. By reason of the foregoing, plaintiff JOVON GENERLETTE has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

58. Plaintiff repeats, reiterates and realleges each and every allegation claimed and set forth in the First Cause of Action with the same force and effect as though more fully set forth at length herein.

59. That defendant NICHOLAS AGLIATO, by physically battering and assaulting the plaintiff JOVON GENERLETTE when he had no lawful authority or consent to do so was without warning, justification, was excessive, and constitutes assault and battery for which defendant NICHOLAS AGLIATO is individually liable.

60. That defendant NICHOLAS AGLIATO, by physically battering and assaulting the plaintiff JOVON GENERLETTE when he had no lawful authority or consent to do so was without warning, justification, was excessive, and constitutes assault and battery for which defendant SLATE NY. is vicariously liable.

61. That defendant NICHOLAS AGLIATO, by physically battering and assaulting the plaintiff JOVON GENERLETTE when he had no lawful authority or consent to do so was without warning, justification, was excessive, and constitutes assault and battery for which defendant ALLSTAR SECURITY & CONSULTING, INC is vicariously liable.

62. As a proximate result of the assault and battery committed by defendant NICHOLAS AGLIATO, plaintiff JOVON GENERLETTE has sustained permanent injuries and has incurred medical bills and other expenses and that these injuries have caused and will continue to cause plaintiff great pain and suffering, both mental and physical.

63. That the intentional abuse of plaintiff by defendant NICHOLAS AGLIATO while plaintiff was a lawful patron at the aforesaid restaurant/bar premises was done with actual malice toward plaintiff and with willful and wanton indifference to, and deliberate disregard for human life and the rights of plaintiff JOVON GENERLETTE.

64. By reason of the foregoing, plaintiff JOVON GENERLETTE has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

65. That this action is being timely commenced against defendants pursuant to NYS On Pause, Executive Order 202.28.

AS AND FOR A THIRD CAUSE OF ACTION

66. At all times herein mentioned, defendant THE CITY OF NEW YORK (hereinafter referred to as defendant "CITY"), was and still is a municipal corporation.

67. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD"), was and still is a public authority and/or agency of the defendant CITY duly authorized to and doing business in the County, City and

State of New York.

68. That at all times hereinafter mentioned, the NYPD was a subsidiary, agency and/or otherwise under the auspices and control of the defendant CITY.

69. At all times herein mentioned, the NYPD was and remains a department of defendant CITY.

70. That at all times hereinafter mentioned, defendant CITY was and is responsible for the actions of the NYPD, its agents, servants and/or employees

71. Prior to the commencement of this action, a notice of claim in writing was served on the defendant CITY on behalf of plaintiff in accordance with Section 50-e of the General Municipal Law.

72. Prior to the commencement of this action, a notice of claim in writing was served on the NYPD on behalf of plaintiff in accordance with Section 50-e of the General Municipal Law.

73. That plaintiff duly presented and served upon defendant CITY their notice of claim and demand for adjustment of damages by serving and filing same upon said defendant within ninety (90) days after the accrual of plaintiff's claims pursuant to the statutes in such cases made and provided.

74. That plaintiff duly presented and served upon the NYPD their notice of claim and demand for adjustment of damages by serving and filing same upon said defendant within ninety (90) days after the accrual of plaintiff's claims pursuant to the statutes in such cases made and provided.

75. That although more than thirty (30) days have elapsed since the presentation and service of the notice of claim and demand for adjustment of damages, defendant CITY has failed to make any adjustments and/or payments of said claim.

76. That although more than thirty (30) days have elapsed since the presentation and service of the notice of claim and demand for adjustment of damages, the NYPD has failed to

make any adjustments and/or payments of said claim.

77. The oral examination of the plaintiff pursuant to Section 50-h of the General Municipal Law was conducted on February 1, 2021.

78. That this action is commenced within one year and ninety days of the date of accrual of plaintiff's claims.

79. At all times herein mentioned, defendant CITY operated and maintained police forces charged with the duty and responsibility of maintaining the peace in the City of New York.

80. At all times herein mentioned, defendant CITY operated, managed and controlled NYPD.

81. At all times herein mentioned, defendant CITY operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

82. At all times herein mentioned, defendant CITY employed police officers.

83. At all times herein mentioned, defendant CITY supervised the NYPD.

84. At all times herein mentioned, defendant CITY supervised the NYPD and its personnel.

85. At all times herein mentioned, defendant CITY supervised the NYPD and its personnel, including its police officers.

86. At all times herein mentioned, defendant CITY supervised the NYPD, and its personnel, including defendant POLICE OFFICER LIAM MCHUGH.

87. At all times herein mentioned, the NYPD employed police officers.

88. At all times herein mentioned, the NYPD supervised its personnel.

89. At all times herein mentioned, the NYPD supervised its personnel, including its police officers.

90. At all times herein mentioned, the NYPD supervised its personnel, including defendant POLICE OFFICER LIAM MCHUGH.

91. At all times herein mentioned, defendant POLICE OFFICER LIAM MCHUGH was an employee of defendant CITY.

92. At all times herein mentioned, defendant POLICE OFFICER LIAM MCHUGH was an employee of the NYPD.

93. At all times herein mentioned, defendant CITY employed and supervised the defendant POLICE OFFICER LIAM MCHUGH.

94. At all times herein mentioned, the NYPD employed and supervised the defendant POLICE OFFICER LIAM MCHUGH.

95. At all times herein mentioned, defendant POLICE OFFICER LIAM MCHUGH was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD, and was acting in the course and scope of their employment.

96. At all times herein mentioned, defendant POLICE OFFICER LIAM MCHUGH was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD and acting in furtherance of the interests and business of his employer.

97. At all times herein mentioned, defendant POLICE OFFICER LIAM MCHUGH was engaged in conduct incidental to the performance of his functions in the course of his duties as employee of the defendants.

98. At all times herein mentioned, defendant POLICE OFFICER LIAM MCHUGH was engaged in supervisory capacities in the scope of his employment with defendants.

99. The plaintiff was injured as a result of the negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees.

100. On December 20, 2019, plaintiff JOVON GENERLETTE was lawfully at the restaurant/bar establishment known and designated as SLATE NY located at 54 West 21st Street, in the County, City and State of New York

101. On December 20, 2019, the plaintiff JOVON GENERLETTE was a lawful citizen abiding by all laws, statutes and ordinances of the State of New York.

102. At the aforesaid time and place certain New York City police officer POLICE

OFFICER LIAM MCHUGH was present.

103. At the aforesaid time and place certain POLICE OFFICER LIAM MCHUG was present in the course and scope of their employment with defendant NYPD.

104. At the aforesaid time and place certain POLICE OFFICER LIAM MCHUG was present in the course and scope of their employment with defendant with the knowledge, authority, permission and consent of defendant NYPD.

105. At the aforesaid time and place plaintiff without provocation, probable cause, warrant, or any other legal justification, was assaulted, attacked, battered, dragged and illegally detained by aforesaid New York City Police Officers.

106. At the aforesaid time and place plaintiff without provocation, probable cause, warrant, or any other legal justification, was violently, forcibly and improperly handcuffed by aforesaid New York City Police Officers.

107. At the aforesaid time and place plaintiff was forcibly and improperly handcuffed by said York City Police Officers and transported to the 13th Precinct NYPD Facility located at 230 East 21st Street, New York, NY 10010, where plaintiff was falsely, illegally and wrongfully detained.

108. That on December 20, 2019, plaintiff without provocation, probable cause, warrant, or any other legal justification, was wantonly, intentionally, maliciously, illegally, and aggressively assaulted, attacked, battered, struck and handcuffed by said New York City Police Officers who used excessive force and violence in their handling and dealing with the plaintiff.

109. At all times herein mentioned, defendants had the duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by the law for the protection of civilians, including the plaintiff, against unreasonable risk of harm.

110. That the aforesaid occurrence were caused solely and wholly, through and by reason, of the carelessness, recklessness and negligence of the defendants in failing to instruct or properly instruct their personnel, particularly the police officers involved herein, in the manner in which they were to execute their duties; in failing to supervise, properly supervise and/or adequately

supervise its personnel; in hiring employees with known wild and criminal propensities; in failing to employ and/or hire competent, able and/or knowledgeable officers; in failing to train and/or properly train their officers in the proper execution of their jobs; in failing to train, properly train and/or adequately train its police officers, agents, servants and/or employees, in the safe and proper execution of their jobs; in violating the applicable laws, statutes, codes, rules, regulations, ordinances, and industry standards in such cases made and provided; in the gross, wanton, reckless and willful acts of defendants, their agents, servants and/or employees; in causing plaintiff grave psychological and emotional injuries; they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence, all without any fault or lack of care on the part of plaintiff thereto.

111. That by reason of the foregoing plaintiff was seriously and permanently injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur, further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

112. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

113. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

114. Plaintiff repeats, reiterates and realleges each and every allegation contained in the First Cause of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

115. That on December 20, 2019, plaintiff was falsely, illegally and wrongfully arrested by aforesaid Police Officers without probable or just cause or provocation, and detained, transported to the Police Precinct and imprisoned the plaintiff for an unreasonable period of time thereafter until he was released.

116. That on December 20, 2019, plaintiff was caused to be falsely and wrongfully arrested, handcuffed, detained, imprisoned, incarcerated and deprived of his rights and liberty for an unreasonable period of time until he was discharged.

117. That on December 20, 2019, defendants, their agents, servants and/or employees did falsely, wrongfully, intentionally and maliciously arrest, detain, imprison and incarcerate the plaintiff, depriving him of his civil rights and liberty for an unreasonable period of time, all without any just cause or provocation.

118. That by reason of the foregoing, plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely injured and damaged.

119. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

120. Plaintiff repeats, reiterates and realleges each and every allegation contained in the First and Second Causes of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

121. At all times herein mentioned it was the duty of defendants to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

122. At all times herein mentioned, it was the duty of said defendants to properly train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of its agents, servants and/or personnel.

123. That by reason of the negligence of defendants in their hiring, monitoring and retention of said employees with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendants' breach of their duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

124. That by reason of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

125. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

126. The defendants issued criminal legal process against the plaintiff for the purpose of forbearing certain acts by the plaintiff.

127. The plaintiff was deprived of his liberty and freedom by way of arrest and confinement.

128. The actions of the defendants causing the plaintiff to be arrested, imprisoned, and prosecuted, were affected for the ulterior purpose of causing plaintiff to be unlawfully deprived of his liberty and civil rights, and to suffer inconvenience, humiliation, shame, embarrassment, damage to his reputation and good name, and to incur legal expenses.

129. The defendants acted with ulterior purpose of causing the plaintiff harm, all the while lacking any economic justification, social excuse, or other justification.

130. The defendants activated the process for a collateral advantage or corresponding

detriment to the plaintiff that is outside the legitimate ends of the process.

131. The false arrest, false imprisonment, and wrongful prosecution of plaintiff by the defendants was intentional, without justification or excuse, a misuse of process, and an abuse of judicial process.

132. By reason of the foregoing, the plaintiff sustained actual and special damages, was improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

133. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A SEVENTH CAUSE OF ACTION

134. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

135. On December 20, 2019, the plaintiff was lawfully at the restaurant/bar establishment known and designated as SLATE NY located at 54 West 21st Street, in the County, City and State of New York.

136. The plaintiff had not committed any offense and the defendants did not have justification, reasonable cause, or probable cause to believe that the plaintiff had committed any offense.

137. The defendants, acting in the performance of their employment and the scope of their authority maliciously prosecuted the plaintiff by commencing an action in the Criminal Court of the City of New York, County of New York, under desk ticket arrest no.: M19655373.

138. The defendants had no probable cause for the criminal proceeding initiated, continued, and executed against the plaintiff.

139. The defendants lacked a reasonable basis to believe the plaintiff was guilty of the crimes charged based on the facts known to the defendants at the time the prosecution was

initiated and failed to conduct further inquiry when a reasonable person would have done so before the prosecution.

140. The defendants commenced the criminal proceeding against the plaintiff with malice.

141. The defendants acted deliberately with awareness of conscious falsity.

142. The defendants fabricated charges against the plaintiff and set those charges forth in false and fabricated criminal charges, falsely sworn by the defendants.

143. The defendants fabricated information against the plaintiff, such as that he possessed a knife, and included this information in their reports.

144. The criminal conduct and reports against the plaintiff were and are false and fraudulent.

145. Based upon the false criminal complaint and complaint reports prepared by the defendants, the criminal court relied on false charges.

146. The defendants' conduct was motivated by hatred, ill will, spite, and was wanton, reckless, and in willful disregard of the rights of the plaintiff.

147. By reason of the foregoing, the plaintiff sustained actual and special damages, was improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

148. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

149. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

AS AND FOR A EIGHTH CAUSE OF ACTION

150. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

151. At all times herein mentioned, the defendants were acting under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs, and usages of The City of New York and The State of New York.

152. At all times herein mentioned, the defendants' acts constituted state action.

153. On and before December 20, 2019, the defendants developed and maintained policies, customs, and practices exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which caused a violation of the plaintiff's rights.

154. On and before December 20, 2019, it was the policy, custom, and practice of the defendants to improperly and inadequately investigate citizen and other complaints of police misconduct and acts of misconduct were instead tolerated, including but not limited to, incidents in the past wherein the defendants and their supervisors made false arrests without probable cause and allowed fellow police officers and employees to make false entries in official police department records, to issue false and fraudulent criminal complaints and accusatory instruments, and to cover up and hide wrongful conduct.

155. On and before December 20, 2019, it was the policy, custom, and practice of the defendants to fail to take steps to discipline, train, supervise, or otherwise correct the improper and illegal conduct of the individual defendants in this and similar cases involving misconduct, thereby failing to adequately discharge further constitutional violations on the part of its police officers.

156. On and before December 20, 2019, it was the policy, custom, and practice of the defendants to fail to require appropriate in-service training and re-training of police officers who were known to have engaged in police misconduct.

157. If certain individual defendants did not themselves engage in tortious conduct directed at the plaintiff, those individuals failed to prevent physical battery, arrest, and abuse of the plaintiff, or other tortious conduct by the other individual defendants directed toward the plaintiff, despite having a duty to do so.

158. As a result of the faulty policies, customs, and practices of the defendants, the

police officers employed by the defendants believed their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

159. The defendants' policies, customs, and practices demonstrated a deliberate indifference on the part of the policymakers to the constitutional rights of persons within the City of New York, and were the cause of the violations of plaintiff's rights.

160. The plaintiff in no way provoked or encouraged the conduct of the defendants and the defendants' conduct was in no way privileged.

161. The defendants, acting in concert and individually, deprived the plaintiff of his civil, constitutional, and statutory rights, and conspired to deprive plaintiff of such rights under the 1st, 4th, 5th, 8th, and 14th amendments, and 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988, including but not limited to: the right to be free from arbitrary and groundless arrest, the right to be free from cruel and unusual punishment and summary punishment, the right to be free from unlawful restraints on movement, right not to be subjected to imprisonment without due process of law, the right to enjoy equal protection of the laws, the right to have all legal rights enjoyed by Caucasian persons, the right to be secure in person and property, the right to have persons entrusted with legal authority to act to enforce his civil rights to act to enforce such rights or be themselves adjudicated, the right to be free from excessive and unreasonable force, the right to obtain timely medical treatment, the right to be protected as a prisoner, and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.

162. By reason of the foregoing, the plaintiff was caused to be falsely arrested, illegally deprived of his liberty and civil rights, caused to suffer imprisonment and confinement, caused to be assaulted and battered, wrongfully prosecuted, incapacitated from his usual vocation, and caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

163. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

164. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

WHEREFORE, plaintiff demands judgment in the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action against defendants herein in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, together with the costs and disbursements of this action and such other and further relief as to this Court seems just and proper.

Dated: New York, New York
February 11, 2021



By: Alexander Kran III, Esq.
LEAV & STEINBERG, LLP
Attorneys for Plaintiff
JOVON GENERLETTE
75 Broad Street, Suite 1601
New York, New York 10004
Tel. No.: (212) 766-5222
File No.: 198307

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOVON GENERLETTE,

Plaintiff,

INDEX NO.: 150472/2021

-against-

SLATE NY, ALLSTAR SECURITY & CONSULTING, INC.,
NICHOLAS AGLIATO, THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT and POLICE OFFICER
LIAM MCHUGH,

**INDIVIDUAL
VERIFICATION**

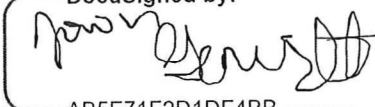
Defendants.
-----X

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

JOVON GENERLETTE, being duly sworn, deposes and says:

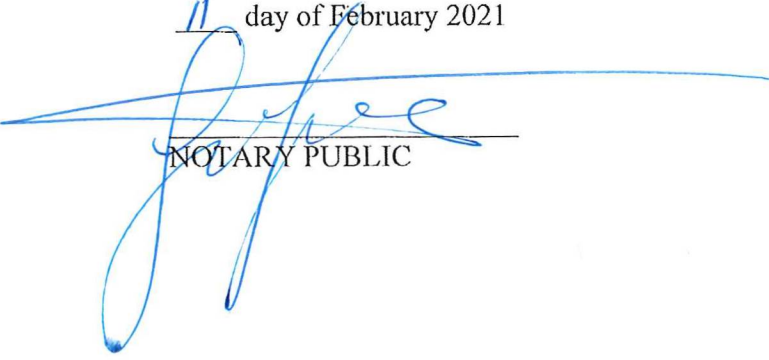
That I am the plaintiff in the within action.

I have read the foregoing Summons and Complaint and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and that as to those matters, I believe them to be true.

DocuSigned by:
X 
AB5E71F2D4DF4BB
JOVON GENERLETTE

VERONIKA SUMALIYEVA
Notary Public, State of New York
Reg. No. 01SU6403314
Qualified in Kings County
Commission Expires 01/21/2024

Sworn to before me this
11 day of February 2021


NOTARY PUBLIC

STATE OF NYCOUNTY OF NY ss:On the 11 day of February, 2021, before me personally came

Jovan Aenelette to me known, and known to me to be the individual(s)
described in and who executed the foregoing Individual Verification, and duly
acknowledged to me that he/she executed the same.


Notary Public

VERONIKA SUMALIYEVA
Notary Public, State of New York
Reg. No. 01SU6403314
Qualified in Kings County
Commission Expires 01/21/2024

That pursuant to Executive Order No. 202.7, "Continuing Temporary Suspension and Modification of Laws Relating to the Disaster Emergency", dated December 2, 2020 through January 29, 2021, the Notary on the release complies with said Executive Order in that the notarial act was performed utilizing audio-video technology and, the following were met: (a) The person seeking the Notary's services, if not personally known to the Notary, presented valid photo ID to the Notary during the video conference, not merely transmit it prior to or after; (b) The video conference allowed for direct interaction between the person and the Notary; (c) The person affirmatively represented that he or she was physically situated in the State of New York; (d) The person transmitted by fax or electronic means a legible copy of the signed document directly to the Notary on the same date it was signed; (e) The Notary notarized the transmitted copy of the document and transmitted the same back to the person; and (f) The Notary repeated the notarization of the original signed document as of the date of execution provided the Notary receives such original signed document together with the electronically notarized copy within thirty days after the date of execution.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: 150472/2021

JOVON GENERLETTE,

Plaintiff,

-against-

SLATE NY, ALLSTAR SECURITY & CONSULTING, INC., NICHOLAS AGLIATO, THE
CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER
LIAM MCHUGH,

Defendants.

SUPPLEMENTAL SUMMONS and VERIFIED AMENDED COMPLAINT

LEAV & STEINBERG, LLP

Attorneys for Plaintiff

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New York, New York 10004

(212) 766-5222